

Sunita @ Sahanashree vs B. Ajayakumar on 8 September, 2023

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NC: 2023:KHC-K:7348

CP No. 200048 of 2023

IN THE HIGH COURT OF KARNATAKA
KALABURAGI BENCH
DATED THIS THE 8TH DAY OF SEPTEMBER, 2023
BEFORE
THE HON'BLE MRS JUSTICE K S HEMALEKHA
CIVIL PETITION NO.200048 OF 2023 (RES)

BETWEEN:

SMT. SUNITA @ SAHANASHREE
W/O B. AJAYKUMAR
AGE: 28 YEARS
OCC: HOUSE WIFE
C/O: K. GOLLA
TQ: SHAHABAD
DIST: KALABURAGI- 585121

...PETITIONER

(BY SRI SANGANABASAVA B PATIL, ADVOCATE)

AND:

MR. B. AJAYAKUMAR
S/O D. BABANNA
AGE ABOUT: 35 YEARS

OCC: PRIVATE EMPLOYEE
R/O: H.NO. 13-2-3/135, POTHAGAL ROAD

PRAKASH NAGAR, YERMARUS CAMP

TQ: & DIST: RAICHUR- 584102.

...RESPONDENT

(NOTICE TO R-1 - SERVED)

THIS CP IS FILED U/S. 24 OF THE CPC, PRAYING TO
TRANSFER OF THE CASE BEARING M.C.NO.125/2022 BEFORE
THE HON'BLE COURT OF THE PRL. JUDGE FAMILY COURT,
RAICHUR AT: RAICHUR TO THE PRL. JUDGE ADDL. FAMILY
COURT KALABURAGI AT KALABURAGI.

THIS PETITION COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

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Digitally signed

by SHYAMALA
Location: HIGH
COURT OF
KARNATAKA

ORDER

Though notice is served on the respondent, the respondent has chosen to remain absent.

2. Heard learned counsel for the petitioner.

3. Present petition is filed by the wife under Section 24 of Code of Civil Procedure, 1908 ("CPC") seeking for transfer of M.C.No.125/2002, pending on the file of the Prl. Judge, Family Court, Raichur, filed by the respondent under Section 13(1)(ia) & (ib) of the Hindu Marriage Act, 1955, to the Family Court at Kalaburagi.

4. The facts of the case are that, the petitioner and respondent are husband and wife and their marriage was solemnized on 09.02.2018 at Gujarati Kalyana Mantap, Gunj Circle, Raichur as per the customs and rituals prevailing in their community, and they were blessed with a baby girl. The relationship between the petitioner and the respondent was not cordial and they are living separately. Husband filed petition for divorce in NC: 2023:KHC-K:7348 M.C.No.125/2000 before the Family Court, Raichur, and the petitioner herein has filed Crl.Misc.No.73/2023 seeking maintenance under Section 125 before the Family Court, Kalaburagi.

5. Learned counsel for the petitioner would submit that she is a young lady aged about 24 years and she is staying with her parents at Kalaburagi, the distance between Kalaburagi and Raichur is around 165 kms, and she has a minor child who is having hearing disability, she has to be looked after and the petitioner's absence during the said period would cause great hardship. It is also contended that the petitioner has got financial constraints since there is no maintenance is awarded yet in the criminal miscellaneous filed for maintenance.

6. In matrimonial matters where transfer is sought by the wife, the convenience of the wife would play a paramount concern in such matters than the inconvenience caused to the husband. The records reveal that the petition filed by the wife is pending consideration NC: 2023:KHC-K:7348 before Family Court, Raichur, and the distance between Kalaburagi to Raichur is nearly about 165 kms.

7. Section 24 of the CPC enumerates this Court to exercise the power to transfer the petition, suit, appeal or other proceedings where justice demands. In transfer petition, where the transfer is sought by the wife, the convenience of wife needs to be considered as held by Apex Court in catena of judgment in line. The Apex Court, in case of N.C.V. Aishwarya vs. A.S.Saravana Karthik SHA reported in 2022 SCC OnLine SC 119 at para No.9 has held as under:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the

NC: 2023:KHC-K:7348 circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

8. The petitioner being a young lady aged about 24 years having a minor child who has hearing impairment and the distance between Raichur and Gulbarga is about 165 kms. causing inconvenience to the wife to attend the case at Raichur and thus, this Court is of the considered view that the petition deserves to be allowed. Accordingly, this Court pass the following:

ORDER

(i) The civil petition is hereby allowed.

(ii) M.C.No.125/2022 is withdrawn from the Family Court, Raichur and transfer the same to the Family Court, Kalaburagi.

Sd/-

JUDGE S